

IN THE SENATE

SENATE BILL NO. 1289

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING CHAPTER 37, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-3717D, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING LIMITATIONS ON SCHOLARSHIPS FOR CERTAIN STUDENT ATHLETES AT IDAHO PUBLIC INSTITUTIONS OF HIGHER EDUCATION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 37, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-3717D, Idaho Code, and to read as follows:

33-3717D. IDAHO PUBLIC INSTITUTIONS OF HIGHER EDUCATION -- LIMITATIONS ON SCHOLARSHIPS. (1) For the purposes of this section, "scholarship" means any form of financial aid, tuition waiver, grant, or other financial assistance, whether full or partial, awarded by an Idaho public institution of higher education, including those offered entirely or partly on the basis of a student's academic performance or record, athletic ability, or participation in athletics.

(2) All Idaho public institutions of higher education shall give preference to Idaho residents in awarding scholarships.

(3) For student athletes in a given academic year, Idaho public institutions of higher education shall not award a scholarship to more than ten percent (10%) of the total number of student athletes for all sports rosters, excluding football, to students who are not United States citizens. Football rosters shall have no more than five percent (5%) of student athletes receiving a scholarship who are not United States citizens at any given time. No men's or women's collegiate athletic team at an Idaho public institution of higher education shall have more than fifty percent (50%) of its student members receiving a scholarship who are not United States citizens at any given time.

(4) Scholarships awarded to students who are not United States citizens who are enrolled in an Idaho public institution of higher education prior to the effective date of this act shall not be invalidated by the provisions of this section. Such students shall not be counted toward the ten percent (10%) cap provided for in subsection (3) of this section for a period not to exceed four (4) full-time, consecutive academic years including those already completed or in progress.

(5) The Idaho state board of education shall promulgate rules, subject to legislative approval, to implement the provisions of this section.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.